

**CHAPTER xviii.**

An Act to confer further powers on and to change the name of the North Metropolitan Electric Power Supply Company and for other purposes.
[25th May 1939.]

WHEREAS the North Metropolitan Electric Power Supply Company (hereinafter referred to as "the Company") were incorporated by Act of Parliament in nineteen hundred and by the North Metropolitan Electric Power Supply (Consolidation) Act 1928 (hereinafter referred to as "the Act of 1928") all former Acts of the Company were repealed and the provisions thereof were consolidated in that Act: 18 & 19 Geo. 5. c. cxviii.

And whereas by the North Metropolitan Electric Power Supply Acts 1932 1936 and 1937 further powers were conferred on the Company: 22 & 23 Geo. 5. c. lxxv.

And whereas the Company are the owners of a station for generating electricity in the borough of Willesden (known and hereinafter referred to as "the Willesden generating station") and are empowered by section 66 of the Act of 1928 for the purposes mentioned in that section to lay mains and pipes in and break up roads within the area which comprised the urban district of Willesden as constituted on the third day of August nineteen hundred and twenty-eight: 26 Geo. 5. & 1 Edw. 8. c. lxi. 1 Edw. 8. & 1 Geo. 6. c. xl.

And whereas the Willesden generating station is a selected station for the purposes of the South-East

16 & 17
Geo. 5. c. 51.

England Electricity Scheme 1927 as adopted by the Central Electricity Board under section 4 of the Electricity (Supply) Act 1926 and electricity generated at the Willesden generating station is supplied in bulk to the Willesden Corporation and other electricity undertakers as well as to the Company's limits of supply :

And whereas the Central Electricity Board with the approval of the Electricity Commissioners have issued a direction to the Company to make certain extensions of the Willesden generating station and the Company have obtained the consent of the Electricity Commissioners to make these extensions :

And whereas in order to carry out these extensions the Company will require additional land in the vicinity of the Willesden generating station for purposes subsidiary to that station and it is expedient to authorise the Company to acquire the land described in this Act for the purposes in this Act stated :

And whereas the North Metropolitan Power Station Company Limited (hereinafter referred to as "the station company") have purchased from the Company the generating station known as the Brimsdown generating station "A" under a deed of conveyance confirmed by the said Act of 1936 and have erected on land adjacent to that generating station another generating station known as the Brimsdown generating station "B" both of which generating stations are selected stations for the purposes of the said South-East England Electricity Scheme 1927 :

And whereas by the said Act of 1936 the Company are empowered to take on lease from the station company any generating station authorised by Act of Parliament or Order having the force of an Act and situate in the Company's limits of supply and for the time being belonging to the station company and so long as they are the lessees of any such generating station to maintain and operate the station and the Company have taken leases of and are operating the Brimsdown generating stations "A" and "B" :

And whereas it is expedient to empower the Company to sell to the station company the Willesden generating station and the said land in the vicinity

thereof if acquired by the Company and any buildings and works erected by the Company on such land and after any such sale to take on lease from the station company the Willesden generating station and the said land and the buildings and works thereon :

And whereas it is expedient for the purpose of enabling the Willesden generating station to be connected with any buildings and works on the said land to authorise the Company and also the station company if they become the owners of the Willesden generating station and the said land to exercise the powers conferred by this Act with respect to certain land situate between the Willesden generating station and the said land :

And whereas the Hendon Electric Supply Company Limited (hereinafter referred to as "the Hendon Company") are the present undertakers for the purposes of the Hendon Electric Lighting Orders 1899 to 1908 (hereinafter referred to as "the Hendon Orders") and are empowered by those Orders to supply and are supplying electricity for all purposes in the area of supply defined in the said Order of 1899 namely the urban district of Hendon as constituted on the thirteenth day of July eighteen hundred and ninety-nine :

And whereas by reason of—

- (i) the Counties of Hertford and Middlesex Order 1926 confirmed by the Ministry of Health Provisional Orders Confirmation (No. 10) Act 1926; 16 & 17
Geo. 5. c.lix.
- (ii) the Hendon Urban District Council Act 1929; 20 & 21
Geo. 5. c.xxi.
- (iii) the constitution on the twenty-first day of July nineteen hundred and thirty-three of the then urban district of Hendon as a municipal borough; and
- (iv) the Middlesex Review Order 1934;

the area of supply of the Hendon Company now comprises—

- (a) the whole of the present borough of Hendon except the areas added thereto by the said Act of 1929 and the said Middlesex Review Order;

- (b) the area transferred by the said Order of 1926 from the then urban district of Hendon to the parish of Shenley in the rural district of Barnet and now by virtue of the County of Hertford Review Order 1935 situate in the urban district of Barnet; and
- (c) the areas transferred by the said Middlesex Review Order from the borough of Hendon to the borough of Finchley :

And whereas by the Act of 1928 the Company are empowered subject to the conditions and limitations stated in that Act to supply electricity for all purposes within that part of their limits of supply which is described in Part III of the Second Schedule to that Act including (inter alia) the areas of the urban district of Hendon and the rural district of Barnet as respectively constituted on the first day of June nineteen hundred and twenty-eight which areas together contain the whole of the area of supply of the Hendon Company under the Hendon Orders :

And whereas the whole of the electricity supplied by the Hendon Company is purchased in bulk from the Company :

And whereas it is expedient to vest in the Company the undertaking of the Hendon Company as defined in this Act on the terms stated in this Act :

And whereas it is expedient to confer further powers on the Company as in this Act contained to change their name and to enact the other provisions of this Act :

And whereas the purposes of this Act cannot be attained without the authority of Parliament :

And whereas a plan of the land which may be taken compulsorily and of the lands which may be used or in which easements may be acquired compulsorily by the Company under the powers of this Act and a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees and the occupiers of those lands have been deposited with the clerk of the county council of the administrative county of Middlesex and are respectively referred to in this Act as the deposited plan and the deposited book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1.—(1) This Act may be cited as the Northmet Power Act 1939. Short and collective titles.

(2) The North Metropolitan Electric Power Supply Acts 1928 to 1937 and this Act may be cited together as the Northmet Power Acts 1928 to 1939.

2. The Electric Lighting Act 1888 shall not apply to the undertaking authorised by this Act or to the Company in relation thereto. Electric Lighting Act 1888 not to apply.

3. The Lands Clauses Acts (except sections 127 to 132 of the Lands Clauses Consolidation Act 1845) and Part IV (Change of name) of the Companies Clauses Act 1863 are so far as applicable to the purposes of this Act and except where expressly varied by or inconsistent with this Act incorporated with and form part of this Act. Incorporation of general Acts.
8 & 9 Vict. c. 18.
26 & 27 Vict. c. 118.

4. In this Act unless the subject or context otherwise requires— Interpretation.

words and expressions to which meanings are assigned by section 5 (Interpretation) of the Act of 1928 other than the expression “the Company” have the same respective meanings ;

words and expressions to which meanings are assigned by the Electric Lighting Act 1882 have the same respective meanings except as otherwise stated in section 5 of the Act of 1928; 45 & 46 Vict. c. 56.

“the Company” means the North Metropolitan Electric Power Supply Company or (as the context may require) that Company under their name as changed by this Act ;

“the Willesden generating station” means the generating station buildings works and apparatus of the Company situate on the

lands (*b*) described in the Third Schedule to the Act of 1928 and includes those lands ;

“ the specified land ” means the land described in section 6 (Power to acquire land) of this Act ;

“ the Act of 1928 ” “ the station company ” “ the Hendon Company ” and “ the Hendon Orders ” have the same respective meanings as in the preamble to this Act ;

“ the Act of 1932 ” “ the Act of 1936 ” and “ the Act of 1937 ” mean the North Metropolitan Electric Power Supply Acts of those respective years ;

“ the existing Acts ” means the Act of 1928 the Act of 1932 the Act of 1936 and the Act of 1937 ;

“ the appointed day ” means the thirtieth day of September nineteen hundred and thirty-nine ;

“ the Hendon undertaking ” means—

(*a*) all rights powers authorities privileges obligations and liabilities vested in or attaching to the Hendon Company immediately before the appointed day as the undertakers for the purposes of the Hendon Orders ; and

(*b*) all lands buildings works materials and plant belonging to the Hendon Company immediately before the appointed day and used or intended for use by them for the purposes of the undertaking authorised by the Hendon Orders ;

but does not include any assets of the Hendon Company not mentioned in the foregoing paragraphs (*a*) and (*b*) ;

“ the Hendon Corporation ” means the mayor aldermen and burgesses of the borough of Hendon.

CHANGE OF NAME.

Change of
name.

5. As from the passing of this Act the name of the Company shall be the Northmet Power Company.

WILLESDEN GENERATING STATION LANDS AND
EASEMENTS.

6. The Company may for purposes subsidiary to the Willesden generating station and for the general purposes of their undertaking enter upon take and use compulsorily or by agreement and the Willesden Corporation may by agreement and notwithstanding anything in any other Act sell to the Company the land hereinafter described being the land numbered 1 on the deposited plan (viz.):—

Power to
acquire
land.

A plot of land in the borough of Willesden containing 5 acres 1 rood and 8 poles or thereabouts bounded on the eastern and south-eastern sides by the roadway known as Leicester Road on the northern side by the footpath leading from Gibbons Road to Brentfield Road and on the western side partly by school premises of the Willesden Corporation and partly by the premises on the eastern side of Brentfield Road known as numbers 200 to 238 in that road.

7.—(1) The Company may—

Power to
acquire
rights and
easements.

- (a) enter upon the lands numbered 2 and 3 on the deposited plan and situate within the "Limit of easements" marked on that plan and break up and open the site and soil of those lands ; and
- (b) construct place lay support maintain and use in on under and over those lands subways conveyors electric lines pipes drains and other works and apparatus for connecting the Willesden generating station with any buildings and works for the time being situate on the specified land and from time to time inspect cleanse repair enlarge or remove such works and apparatus ; and
- (c) for all or any of those purposes and also for the purpose of passing between the Willesden generating station and the specified land exercise all necessary rights of access over along or across those lands.

(2) The Company shall make to the owners lessees and occupiers and other parties having any estate or

interest in the said lands numbered 2 and 3 on the deposited plan compensation for any rights or easements conferred by or acquired under this section.

(3) The Company may give notice to treat in respect of any such rights or easements as aforesaid describing the nature thereof and the provisions of the Lands Clauses Acts incorporated with this Act shall apply to and in respect of the acquisition of such rights or easements as fully as if they were lands within the meaning of those Acts except that no such right or easement shall be deemed to be part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845.

Power
to sell
Willesden
generating
station to
station
company
and take
lease
thereof.

8.—(1) The Company may sell to the station company the Willesden generating station or any part thereof for such consideration and on and subject to such other terms and conditions as may be agreed between the Company and the station company.

(2) If the Willesden generating station or any part thereof be sold to the station company under subsection (1) of this section the provisions of section 20 (Company may take on lease generating stations of station company) of the Act of 1936 shall extend and apply to the Willesden generating station or the part thereof so sold to the station company as though that station or part thereof were situate in the limits of supply.

Power
to sell
specified
land &c. to
station
company
and take
lease
thereof.

9.—(1) If the Company shall acquire the specified land the Company at any time after such acquisition may sell to the station company the specified land or any part thereof and any buildings and works situate thereon and any rights or easements acquired by the Company under section 7 (Power to acquire rights and easements) of this Act for such consideration and on and subject to such other terms and conditions as may be agreed between the Company and the station company.

(2) If and so long as the station company are the owners of the specified land or any part thereof and the buildings and works situate thereon the Company may at any time and from time to time take on lease from the station company for such term of years and on and subject to such other terms and conditions as

may be agreed between the Company and the station company the specified land or the part thereof for the time being belonging to the station company and the buildings and works situate thereon (including any buildings and works which may be erected thereon by the station company) and any rights or easements sold to the station company by the Company pursuant to the last preceding subsection or acquired by the station company pursuant to the next succeeding subsection.

(3) If the station company shall become the owners of both the Willesden generating station and the specified land or any part thereof the station company may so long as they continue to be such owners exercise the powers of the said section 7 of this Act as though the expression "the Company" in that section included the station company as well as the Company.

10. All provisions for the protection of the Postmaster-General and his telegraphic lines which are contained in the Electricity (Supply) Acts 1882 to 1936 and in the schedule to the Electric Lighting (Clauses) Act 1899 shall so far as applicable extend and apply to the exercise by the Company or the station company of the powers conferred by section 7 (Power to acquire rights and easements) of this Act.

For pro-
tection of
Postmaster-
General.

11. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the board and the Company have effect:—

For pro-
tection of
Metropoli-
tan Water
Board.

- (1) Not less than twenty-eight days before commencing to construct place or lay under the powers of section 7 (Power to acquire rights and easements) of this Act any such work or apparatus as is referred to in paragraph (b) of subsection (1) of that section in on or under the lands referred to in paragraph (a) of the said subsection (1) the Company shall give to the board notice in writing of their intention so to do with particulars of the intended work or apparatus and a plan and section showing the position

in which it is proposed to be constructed placed or laid:

- (2) The Company shall repay to the board the cost reasonably incurred by the board at any time after the receipt of any such notice in—

(a) making any alteration of the position or nature of so much of the existing six inch main of the board laid under the said lands as it may reasonably be necessary to alter in consequence or in anticipation of the construction placing or laying by the Company in on or under the said lands of any such work or apparatus as aforesaid; and

(b) executing and doing all such works and things as shall be reasonably necessary for the support of so much of the said main of the board as shall require support in consequence of the construction placing or laying of such work or apparatus:

- (3) Any difference which shall arise between the Company and the board under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to and determined by an arbitrator to be agreed upon between the Company and the board or in default of agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 or any statutory modification or re-enactment thereof for the time being in force shall apply to any such reference and determination.

Correction
of errors
in deposited
plan and
book of
reference.

12. If there be any omission misstatement or wrong description of any land or of the owners lessees or occupiers of any land shown on the deposited plan or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the land in question may apply

to two justices having jurisdiction in the borough of Willesden for the correction thereof and if it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate or a copy thereof shall be deposited with the clerk to the Middlesex County Council and a duplicate thereof shall be deposited with the town clerk of the borough of Willesden and such certificate or copy and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Company to take the land or easements therein in accordance with the certificate.

13. The powers of the Company for the compulsory purchase of lands and easements and of the station company for the compulsory purchase of easements under this Act shall cease on the first day of October nineteen hundred and forty-two.

Period for compulsory purchase of lands and easements.

14.—(1) Nothing in this Act shall authorise the Company or the station company to construct on the specified land a station for generating electrical energy but this subsection shall not deprive the Company of any right which they would otherwise have under the existing Acts or the Electricity (Supply) Acts 1882 to 1936 or deprive the station company of any right which they would otherwise have under the Electricity (Supply) Acts 1882 to 1936 or otherwise to apply to the Minister for his consent under section 2 of the Electric Lighting Act 1909 or to the Electricity Commissioners for their consent under section 11 of the Electricity (Supply) Act 1919 to—

Restriction on erection of a generating station.

- (a) the construction of a new generating station on ; or
- (b) the extension of the Willesden generating station on to ;

9 Edw. 7.
c. 34.
9 & 10
Geo.5.c.100.

the specified land or any part thereof or from constructing a new generating station or extending the

Willesden generating station pursuant to any such consent and subject to any terms conditions or restrictions attaching to the consent.

(2) If pursuant to any such consent as aforesaid a new generating station be constructed on or the Willesden generating station be extended on to the specified land or any part thereof by the Company or the station company then so long as the Company are the owners or the lessees under a lease granted pursuant to section 9 (Power to sell specified land &c. to station company and take lease thereof) of this Act of the specified land or such part thereof and of the buildings and works situate thereon the following provisions shall have effect:—

- (i) The Company may exercise with respect to the specified land or such part thereof as aforesaid any of the powers conferred on them by subsection (1) of section 61 (Generating stations) of the Act of 1928 in relation to the lands described in the Third Schedule to that Act as if the specified land or part thereof so owned by or leased to the Company were lands described in that schedule; and
- (ii) All provisions of the Act of 1928 which apply to or with respect to the Willesden generating station shall extend and apply to or with respect to such new generating station or such extension of the Willesden generating station as though such new generating station or such extension of the Willesden generating station were situate on the lands (b) described in that schedule.

HENDON UNDERTAKING.

Transfer to
Company
of Hendon
under-
taking.

15.—(1) As on and from the appointed day—

- (a) The Hendon undertaking shall by virtue of this Act be transferred to and vested in the Company freed and discharged from all debentures mortgages or charges of the Hendon Company secured thereon or on any part thereof and from all principal

moneys secured by such debentures mortgages or charges and from all other debts liabilities and outgoings due or accrued due from the Hendon Company at or up to the appointed day; and

- (b) The Company shall by virtue of this Act be the undertakers for the purposes of the Hendon Orders to the exclusion of the Hendon Company.

(2) The Company shall pay to the Hendon Company for the Hendon undertaking such sum as may be agreed between the Company and the Hendon Company and approved by an independent accountant (being an accountant agreed between the Company and the Hendon Company and approved by the Electricity Commissioners) and if that sum shall not be paid on or before the appointed day the Company shall pay to the Hendon Company interest thereon at the rate of four per centum per annum from the appointed day to the date of payment.

16.—(1) The Hendon Company shall pay and discharge all debts liabilities and outgoings (including rates taxes and assessments) which shall have become or accrued due from and shall be entitled to all rates rents charges and sums of money which shall have become payable or accrued due to the Hendon Company in respect of the Hendon undertaking before or up to the appointed day.

Outgoings
and
receipts
of Hendon
Company.

(2) The Company shall pay and discharge all debts liabilities and outgoings (other than interest on any debentures mortgages or other charges which immediately before the appointed day were secured on the Hendon undertaking or any part thereof) and shall be entitled to all rates rents charges and sums of money (other than any sums payable to the Hendon Company by the Company under the last preceding section of this Act) which shall become payable or accrue due on or after the appointed day in respect of the Hendon undertaking.

(3) For the purpose of giving effect to this section any such debts outgoings liabilities rates rents charges and sums of money shall when necessary be

apportioned between the Hendon Company and the Company and any other necessary adjustments shall be made.

Rates rents
&c. of
Hendon
Company.

17. All rates rents charges and sums of money which at the appointed day are due or payable or are accruing due or payable to the Hendon Company in connection with the Hendon undertaking shall continue to be or accrue due and payable and may be collected and recovered by (a) the Hendon Company if the same shall have become due or payable prior to the appointed day and (b) the Company if the same shall become due or payable on or after that day.

Further
provisions
incident to
transfer.

18.—(1) Subject to the provisions of this Act all contracts agreements conveyances deeds leases and other instruments affecting the Hendon Company in relation to the Hendon undertaking and in force at the appointed day (except any debentures mortgages or other instruments creating any charge on that undertaking or any part thereof) shall as from the appointed day be as binding and of as full force and effect against or in favour of the Company and may be enforced as fully and effectually as if instead of the Hendon Company the Company had been a party thereto or bound thereby or entitled to the benefit thereof.

(2) All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the Hendon Company in relation to the Hendon undertaking shall after the appointed day be admitted in evidence in respect of the same or the like matter for or against the Company.

Copy of
Act to be
registered.

19.—(1) The Hendon Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register it. If such copy is not so delivered within three months from the passing of this Act the Hendon Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Hendon Company who knowingly and wilfully authorises such default shall incur a like penalty.

(2) Every penalty under this section shall be recoverable summarily.

(3) There shall be paid to the registrar by the Hendon Company on such copy being registered the fee of five shillings.

20. The powers conferred on the Company by the final paragraph of section 86 (Power to subscribe for shares or lend money to other undertakers &c.) of the Act of 1928 which paragraph is set out in paragraph (ii) of section 19 (Financial arrangements with other undertakers &c.) of the Act of 1932 may at any time after the appointed day be exercised with respect to any shares stock or securities of the Hendon Company as if the Hendon Company had continued to be a company taking a supply of electricity from the Company.

Financial
arrange-
ments
between
Company
and share-
holders
&c. of
Hendon
Company.

21. As from the appointed day and so long as the Company are the undertakers for the purposes of the Hendon Orders—

Revision
of prices
under
Hendon
Orders.

(a) The provisions of section 81 (Revision of prices and methods of charge) of the Act of 1928 except subsection (1) thereof and of section 13 (As to revision of prices and methods of charge) of the Act of 1936 shall extend and apply to and with respect to the Hendon Orders in like manner as if the Hendon Orders were Electricity Orders authorising an undertaking acquired by the Company under section 85 (Transfer of undertakings to Company) of the Act of 1928; and

(b) Subsections (2) and (3) of section 22 of the Electricity (Supply) Act 1922 and the schedule to that Act shall not apply to the undertaking authorised by the Hendon Orders.

12 & 13
Geo. 5. c. 46.

22. On and after the appointed day section 24 (As to county roads) of the Act of 1936 shall have effect as if the expression "the Distribution Orders" as defined in that section included the Hendon Orders.

As to
county
roads.

23. On the appointed day paragraph (b) of section 125 (For protection of certain authorised distributors) of the Act of 1928 shall be by virtue of this Act repealed.

Amend-
ment of
section 125
of Act of
1928.

As to
section 118
of Act of
1928.

24. As from the appointed day and so long as the Company shall be the undertakers for the purposes of the Hendon Orders nothing in section 118 (For protection of Hendon Urban District Council) of the Act of 1928 shall be construed as applying to the supply of electricity by the Company under the powers of the Hendon Orders within the area of supply for the purposes of those Orders.

Saving
purchase
rights of
Hendon
Corpora-
tion.

25.—(1) Nothing in this Act shall affect any right of the Hendon Corporation under an indenture made the sixth day of June nineteen hundred and four between the then urban district council of Hendon of the one part and Crompton and Company Limited of the other part (by which indenture the undertaking authorised by the Hendon Electric Lighting Order 1899 as amended by the Hendon Electric Lighting Order 1899 Amendment Order 1903 was transferred by that council to Crompton and Company Limited) to determine that indenture or the transfer effected thereby at the expiration of a term of forty-two years from the date of the indenture or at any recurring period of ten years thereafter subject to the provisions of the indenture relating to such determination Provided that it shall be lawful for the Company and the Hendon Corporation (subject to the approval of the Electricity Commissioners) at any time and from time to time to enter into any agreement or agreements for postponing or suspending all or any of the dates at which and for amending varying or altering the terms subject to which the said indenture or the transfer effected thereby may be so determined and any such agreement may be entered into on such terms and conditions as the Company and the Hendon Corporation may think fit and shall be binding upon the parties.

(2) Notwithstanding anything in the foregoing provisions of this section none of the provisions of the Hendon Orders or of the said indenture or of the Electricity (Supply) Acts 1882 to 1936 shall extend to authorise the Hendon Corporation to purchase or require the transfer by the Company of any generating station of the Company which is not exclusively used or required for the purposes of supplying electricity under the Hendon Orders within the area of supply as defined by the Hendon Orders.

MISCELLANEOUS.

26. Subsection (1) of section 59 (Additional lands) of the Act of 1928 as amended by subsection (1) of section 18 (Additional lands) of the Act of 1936 is hereby further amended by the insertion therein after the words "within the limits of supply" of the words—

"or within any borough (including a county borough but not including a metropolitan borough) or urban district or rural district adjoining the limits of supply."

27.—(1) Subsection (1) of section 85 (Transfer of undertakings to Company) of the Act of 1928 as amended by subsection (1) of section 25 (Transfer of undertakings to Company) of the Act of 1936 is hereby further amended as follows:—

(a) The words "or transferred" shall be inserted therein after the word "granted"; and

(b) The words "nineteen hundred and thirty-nine" shall be substituted therein for the words "nineteen hundred and thirty-six."

(2) Subsection (2) of the said section 25 of the Act of 1936 is hereby repealed and in lieu thereof the following provision shall have effect:—

"Any reference in the Act of 1932 to section 85 of the Act of 1928 as amended or as amended and extended by the Act of 1932 or by section 16 of that Act shall be construed as a reference to that section 85 as amended by subsection (1) of section 25 of the Act of 1936 and by subsection (1) of this section."

28. The provisions of section 16 of the Electricity (Supply) Act 1919 as modified and set forth in the Fourth Schedule to the Electricity (Supply) Act 1926 and as amended by the Electricity (Supply) Act 1928 shall extend and apply with respect to—

(a) any sale by the Company to the station company under the powers of section 8 (Power to sell Willesden generating station to station company and take lease thereof) of this Act of the Willesden generating station or any part thereof;

Additional
lands.Transfer of
under-
takings to
Company.Compensa-
tion for
depriva-
tion of em-
ployment.19 & 20
Geo. 5. c. 4.

- (b) any lease by the station company to the Company under the powers of the said section 8 of the Willesden generating station or any part thereof;
- (c) any sale by the Company to the station company under the powers of section 9 (Power to sell specified land &c. to station company and take lease thereof) of this Act of the specified land or any part thereof and any buildings and works situate thereon;
- (d) any lease by the station company to the Company under the powers of the said section 9 of the specified land or any part thereof and any buildings and works situate thereon;
- (e) the transfer to and vesting in the Company by virtue of section 15 (Transfer to Company of Hendon undertaking) of this Act of the Hendon undertaking;
- (f) the transfer to the Company under the powers conferred by the last preceding section of this Act of any undertaking;
- (g) the cessation of operation or change in the method of operation of—
 - (i) the Willesden generating station if sold to the station company or leased to the Company under or pursuant to the said section 8; or
 - (ii) any generating station or part of any generating station if sold to the station company or leased to the Company under or pursuant to the said section 9; or
 - (iii) any generating station forming part of an undertaking transferred to the Company under the powers of the said last preceding section;

and being a cessation of operation or change in the method of operation in consequence of such sale lease or transfer;

as if any such sale or lease as is referred to in paragraphs (a) (b) (c) and (d) of this section or transfer and vesting of the Hendon undertaking or

any such transfer as is referred to in paragraph (f) of this section were an acquisition of a generating station under or in consequence of the Electricity (Supply) Act 1926 and as if any such cessation of operation or change in method of operation were a restriction on the working or use of a generating station under or in consequence of that Act.

29. Section 98 (Proceedings to be entered in books to be signed by chairman and to be evidence) of the Companies Clauses Consolidation Act 1845 shall in its application to the Company as incorporated with any of the existing Acts have effect as if the words "or of the next succeeding meeting" were inserted therein after the words "shall be signed by the chairman of such meeting."

Signing of
minutes.

30.—(1) Notwithstanding anything in the Companies Clauses Acts 1845 to 1889 it shall not be obligatory on the Company to keep a register of transfers of shares stock debenture stock debentures or mortgages of any class so long as the Company in lieu of those registers shall keep a file of all transfers and evidences of transmission of any shares stock debenture stock debentures or mortgages of the Company which are sent to them for registration in accordance with the provisions of those Acts.

Registers of
transfers.

(2) If and so long as the Company keep any such file as is mentioned in subsection (1) of this section the provisions of section 54 (Closing of transfer books) of the Act of 1928 shall apply as if such file were a register of transfers within the meaning of that section.

31. The costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of
Act.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament

Ch. xviii.

*Northmet Power
Act, 1939.*

2 & 3 GEO. 6.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 9d. net